



Industrial Injuries and Diseases (Old Cases) Act 1967

1967 CHAPTER 34

An Act to consolidate certain enactments relating to workmen's compensation or other benefit in respect of employment before 5th July 1948. [12th June 1967]

B E IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Continuation and supplementation of workmen's compensation

1. The Workmen's Compensation Acts and any other enactment specified in Schedule 9 to the Industrial Injuries Act of 1946 which was repealed by section 89 of that Act shall continue to apply to any cases to which, if this Act had not been passed, they would have applied by virtue of the said section 89, being certain cases where a right to compensation arises or has arisen in respect of employment before 5th July 1948. Continuation of workmen's compensation in certain cases.

2.—(1) The Minister may, by scheme made with the consent of the Treasury, provide for conferring a right to allowances payable out of the Industrial Injuries Fund on persons who are, or have at any time after 20th March 1951 been, entitled to weekly payments by way of workmen's compensation, other than a person whose entitlement to such payments— Schemes for supplementing workmen's compensation.

(a) arose in consequence of an accident happening after 31st December 1923; and

(b) ceased before 5th July 1956.

(2) Subject to the provisions of this Act, the right to such an allowance as aforesaid or to a payment on account thereof shall be subject to such conditions, and the rate of the allowance shall be such, as may be provided by a scheme under subsection (1) of this section.

(3) The allowances for the payment of which a scheme under subsection (1) of this section may make provision shall be—

- (a) where the relevant accident happened before 1st January 1924, an allowance (hereafter in this section referred to as a “basic allowance”) in respect of any period such as is mentioned in subsection (7) of this section;
- (b) an allowance in respect of any period such as is mentioned in paragraph (a) of the said subsection (7) (hereafter in this section referred to as a “major incapacity allowance”);
- (c) subject to subsections (4) and (5) of this section, an allowance in respect of any period such as is mentioned in paragraph (b) of the said subsection (7) (hereafter in this section referred to as a “lesser incapacity allowance”);

and a major incapacity allowance or lesser incapacity allowance in respect of any period shall be payable whether or not a basic allowance is also payable in respect of that period.

(4) A lesser incapacity allowance—

- (a) shall not be payable to any person in respect of any period unless there is or may be expected to be (or, but for the cesser at a time after 1st March 1966 of that person's entitlement to workmen's compensation, would or might be expected to have been) payable to that person in respect of that period either a weekly payment by way of basic allowance or a weekly payment by way of workmen's compensation which is not a notional payment;
- (b) except to a person who immediately before 1st March 1966 was receiving an allowance under a scheme made under the Workmen's Compensation (Supplementation) Act 1951, shall not be payable if the relevant accident happened after 31st December 1923 and the claimant's entitlement to workmen's compensation in consequence thereof ceased before 1st March 1966.

1951 c. 22.

(5) For the purposes of a lesser incapacity allowance, a weekly payment by way of workmen's compensation shall be treated as a notional payment if awarded or paid for the purpose

of safeguarding a potential entitlement to compensation and not related to any existing loss of earnings; and a scheme under subsection (1) of this section may provide that—

(a) in such circumstances or cases as may be specified in the scheme; and

(b) in particular, in cases where weekly payments by way of such compensation are being paid to a person to whom such payments were not made, or were made at a lower rate, during the period of twelve months immediately preceding such date not earlier than 30th November 1965 as may be specified in the scheme,

a weekly payment by way of such compensation shall be deemed to be a notional payment unless the contrary is proved.

(6) The weekly rate—

(a) of a basic allowance shall not exceed two pounds less the amount of the recipient's workmen's compensation and, in respect of a period such as is mentioned in subsection (7)(b) of this section which is a period of partial incapacity only, shall also not exceed the difference between two-thirds of the amount representing his weekly loss of earnings determined in accordance with a scheme under subsection (1) of this section and the amount of his workmen's compensation;

(b) of a major incapacity allowance shall be the corresponding disablement pension rate less the amount of the recipient's workmen's compensation and less the amount of his basic allowance, if any;

(c) of a lesser incapacity allowance shall not exceed two pounds seven shillings and sixpence.

(7) The periods referred to in the foregoing provisions of this section are—

(a) any period during which the person claiming or receiving an allowance under this section—

(i) being or having been entitled to his workmen's compensation in respect of any injury or disease other than pneumoconiosis or byssinosis, is as a result of that injury or disease totally incapable of work and likely to remain so incapable for a considerable period; or

(ii) being or having been entitled to his workmen's compensation in respect of pneumoconiosis, is certified under a scheme made under the Workmen's Compensation (Silicosis) Act 1918 (as originally enacted or as extended by the Workmen's Compensation (Silicosis) Act 1924) or under section 47 of the Workmen's Compensation Act 1925 (as 1925 c. 84,

originally enacted or as extended by any subsequent enactment), or is determined in accordance with a scheme under subsection (1) of this section, to be totally disabled ; or

(iii) is, or but for the determination of his right would be, entitled to his workmen's compensation in respect of byssinosis ; or

(iv) being or having been entitled to his workmen's compensation in respect of two or more injuries or diseases such as are mentioned in the three foregoing sub-paragraphs, is as the joint result of those injuries or diseases totally incapable of work and likely to remain so incapable for a considerable period ;

(b) any period which, not being a period such as is mentioned in paragraph (a) of this subsection, is a period of total or partial incapacity for work resulting from the relevant injury or disease.

Provisions
supplementary
to s. 2.

3.—(1) For the purposes of section 2 of this Act—

(a) the expressions “relevant accident” and “relevant injury or disease” mean the accident in consequence of which or, as the case may be, the injury or disease in respect of which, an entitlement to weekly payments by way of workmen's compensation arose ;

(b) any reference to the happening of an accident shall, in relation to a case of disease, be construed in the same way as for the purposes of the Workmen's Compensation Acts ;

(c) a payment—

(i) under the Workmen's Compensation (War Addition) Acts 1917 and 1919 ; or

(ii) under the Workmen's Compensation (Supplementary Allowances) Act 1940 as amended by the Workmen's Compensation (Temporary Increases) Act 1943,

shall be treated as a weekly payment by way of workmen's compensation.

(2) For the purposes of subsection (1) of the said section 2, a person shall be deemed to be or have been entitled to weekly payments by way of workmen's compensation at any time if he would be or, as the case may be, have been so entitled at that time if—

(a) the amount of any payment, allowance or benefit received by him otherwise than by way of workmen's compensation ; or

1940 c. 47.

1943 c. 49.

- (b) where the relevant accident happened before 1st January 1924, either the said amount, or the amount he is earning or able to earn in some suitable employment or business, or both those amounts,

were sufficiently reduced.

(3) Subject to subsection (7) of this section, for the purpose of the reference in subsection (7)(b) of the said section 2 to a period of total incapacity for work resulting from the relevant injury or disease, a person who is or has been unable to obtain employment shall be treated as subject to such an incapacity if he is treated as being so for the purposes of his workmen's compensation in respect of the relevant injury or disease and in such other circumstances as may be provided by a scheme under the said section 2.

(4) Any reference in the said section 2 or this section to the amount of a person's workmen's compensation shall (subject to subsections (5) to (7) of this section) be taken as referring to the amount, if any, of the weekly payments to which for the time being he is, or would but for the determination of his right be, entitled in respect of the relevant injury or disease:

Provided that—

(a) where in fixing the amount of those weekly payments under the provisions relating thereto regard was had to any payment, allowance or benefit which he might receive during the period of his incapacity from the person liable for the compensation, and the amount is shown to have been reduced in consequence, the amount of those weekly payments shall for the purposes of this subsection be taken to be the reduced amount so fixed with the addition of the amount of the reduction; and

(b) where the amount of those weekly payments has not been fixed under the said provisions, it shall be fixed for the purposes of this subsection without regard to any such payment, allowance or benefit as aforesaid.

(5) A scheme under the said section 2 may include provision that, in such special circumstances or cases and for such purposes as may be specified in the scheme, any reference in the said section 2 or this section to the amount of a person's workmen's compensation shall be taken as referring to such amount as it may be determined in manner provided by the scheme ought reasonably and properly to have been the amount of the weekly payments referred to in subsection (4) of this section.

(6) Where a person is, or has at any time after 20th March 1951 been, entitled to payments under the enactments referred

to in subsection (1)(c)(i) or (ii) of this section but ceased before 21st March 1951 to be entitled to any other weekly payments by way of workmen's compensation in respect of the relevant injury or disease, the amount of his workmen's compensation shall for the purposes of the said section 2 be calculated as if he had not ceased to be entitled to such other payments.

(7) A scheme under the said section 2 may provide for modifying the operation of subsections (3) to (5) of this section in relation to a person whose workmen's compensation is or was compensation under a contracting-out scheme in such manner as appears to the Minister to be proper having regard to the provisions of the contracting-out scheme.

Provisions as
to schemes
under s. 2.

4.—(1) The provisions of this section shall have effect with respect to schemes under section 2 of this Act, and any such scheme is hereafter in this section referred to as "a scheme".

(2) A scheme may make such incidental or supplementary provision as appears to the Minister to be necessary or expedient for the purposes of the said section 2 and may vary or revoke any earlier scheme.

(3) A scheme shall in particular make provision with respect to the making of claims for allowances, with respect to the determination of questions arising on or in connection with any such claim or the payment of allowances, and with respect to any other matters necessary for the proper administration of any scheme; and, subject to any provisions of a scheme for reviewing decisions, the decision in accordance with a scheme of any question arising under a scheme shall be final for the purposes of the said section 2.

(4) Without prejudice to the generality of subsection (2) of this section, a scheme may make provision—

- (a) for the constitution of a board to be charged with the general administration of any scheme and (subject to any provisions of a scheme) with the determination of questions arising under any scheme, and for enabling the decision of the board on any such question to be proved in legal proceedings by means of a certificate or otherwise;
- (b) for enabling any class or description of such questions to be determined as if they had arisen under the Industrial Injuries Act;
- (c) for applying, with or without modifications, section 28(1) of the Industrial Injuries Act (which provides that benefit shall be inalienable) or any regulations under section 27 of that Act (which relates to administration of benefit), or for making provision corresponding thereto;

- (d) for requiring persons claiming or receiving allowances to furnish information and evidence and to undergo medical or other examination, for summoning persons to attend and give evidence or produce documents at any hearing for the purpose of determining questions arising under a scheme, and for authorising the administration of oaths to witnesses at any such hearing ;
- (e) for requiring the repayment to the Industrial Injuries Fund in whole or in part of payments under the said section 2 subsequently found not to have been due, for the deduction of any sums so required to be repaid from payments under the said section 2 or under the Industrial Injuries Act, and for the deduction from payments under the said section 2 of any sums which may by virtue of any provision of the Industrial Injuries Act be recovered by deduction from any payment under that Act.

(5) The Minister may pay to members of any board constituted by a scheme such remuneration or allowances, and may make such other payments in connection with the administration of any scheme (including payments on account of travelling expenses or loss of remunerative time or both to persons required to undergo medical or other examination or to attend any hearing for the purpose of determining questions arising under any such scheme), as he may with the consent of the Treasury determine.

(6) Notwithstanding anything in this Act, a scheme shall not require a person to submit himself to medical treatment.

(7) A scheme varying an earlier scheme may do so in such a way as to make allowances payable, or payable at an increased rate, under the earlier scheme in respect of periods before the making of the later scheme.

(8) The power to make a scheme shall be exercisable by statutory instrument, and a scheme—

- (a) except when made for the purpose only of replacing provisions of previous schemes with new provisions to the same effect, shall not be made unless a draft of the scheme has been laid before Parliament and approved by resolution of each House ;
- (b) when made for such purpose only as aforesaid, shall be subject to annulment in pursuance of a resolution of either House of Parliament.

Industrial diseases benefit in respect of pre-1948 employment

5.—(1) The Minister may, by scheme made with the consent of the Treasury, provide for the payment of allowances or other benefit out of the Industrial Injuries Fund—

Industrial
diseases
benefit
schemes.

- (a) to persons who, having been employed in Great Britain before 5th July 1948 in any occupation prescribed in

relation to a disease to which this section applies, are at the commencement of the scheme, or thereafter become, disabled by that disease ;

(b) to any person who, as the joint result of—

(i) a disease to which this section applies in respect of which he is, or has at any time after 4th July 1956 been, entitled to weekly payments by way of an allowance by virtue of paragraph (a) of this section or by virtue of section 1(1)(a) of the Pneumoconiosis and Byssinosis Benefit Act 1951 ; and

(ii) one or more other diseases or injuries in respect of each of which he is, or has at any such time been, entitled to weekly payments by way either of such an allowance or of workmen's compensation or of an allowance under section 2 of this Act or under the Workmen's Compensation (Supplementation) Act 1951,

is totally incapable of work and likely to remain so incapable for a considerable period ;

(c) to the dependants of persons who, having been employed as aforesaid, die, or have at any time after 31st December 1949 died, as a result of the disease in question.

(2) The diseases to which this section applies are—

(a) pneumoconiosis ;

(b) byssinosis ;

(c) any disease in respect of which compensation was payable under the Workmen's Compensation Act 1925 by virtue of section 43 of that Act ;

but a scheme under this section shall not provide for the payment of benefit in respect of such a disease as is mentioned in paragraph (c) of this subsection unless the Minister is satisfied that the disease is of such a nature that there are likely to be cases where—

(i) a person suffers from it and it is due to the nature of his employment ; but

(ii) it does not manifest itself until more than twelve months after he has ceased to be engaged in the employment.

(3) Subject to the provisions of this Act, the right to benefit in pursuance of a scheme under this section shall be subject to such conditions as may be provided by the scheme, and the rate or amount of any such benefit shall be such as may be so provided.

1951 c. 4 (15
& 16 Geo. 6
& 1 Eliz. 2).

1951 c. 22.

1925 c. 84.

6.—(1) A scheme under section 5 of this Act shall not provide for the payment of benefit to or in respect of a person disabled or dying as a result of a disease to which that section applies—

Restrictions
on scope
of schemes
under s. 5.

- (a) if he or any other person is or has been entitled to benefit in respect of the disablement or death under the Industrial Injuries Act ;
- (b) if he or any member of his family within the meaning of the Workmen's Compensation Act 1925 has received or is entitled to compensation in respect of the disablement or death under the Workmen's Compensation Acts or by virtue of a scheme made or certified thereunder or by virtue of any scheme or law in force in any country or territory outside Great Britain providing for compensation in respect of that disease ; 1925 c. 84.
- (c) if he would have received or would be entitled to such compensation by virtue of any scheme made or certified as aforesaid but for the fact that he was or is entitled to receive compensation in respect of disablement from any other disease or in respect of an injury by accident ;
- (d) if he or his personal representative or any of his relatives has recovered any sum by way of damages in respect of the disablement or death, whether at common law or under the Fatal Accidents Acts 1846 to 1959, or the Law Reform (Miscellaneous Provisions) Act 1934 ; 1934 c. 41.
- (e) if throughout the employment mentioned in subsection (1)(a) of the said section 5 he was employed otherwise than as a workman within the meaning of the Workmen's Compensation Act 1925.

(2) A scheme under the said section 5 shall not provide for the payment of benefit to or in respect of a person disabled or dying as a result of the disease of byssinosis unless he has been employed for a period or periods amounting in the aggregate to not less than ten years in an occupation prescribed in relation to that disease, and shall not provide for the payment of benefit to a person so disabled unless it is determined in accordance with the scheme that the disablement is likely to be permanent.

(3) The foregoing provisions of this section shall be without prejudice to any other restrictions which may be imposed by a scheme under the said section 5 in respect of the persons to or in respect of whom benefit is payable under the scheme ; and those other restrictions shall include restrictions relating to the nature or degree of disablement.

(4) For the avoidance of doubt, the benefits in relation to which restrictions are or may be imposed by virtue of this section shall not include an allowance by virtue of section 5(1)(b) of this Act.

Nature and
amount of
benefit under
s. 5.

7.—(1) The benefit payable to any person in pursuance of a scheme under section 5 of this Act by virtue of subsection (1)(a) or (b) of that section shall be by way of a weekly allowance.

(2) Subject to the provisions of this Act and to any provisions of the scheme for the adjustment of benefit thereunder by reference to pensions, allowances or other benefits payable out of public funds, the weekly rate—

- (a) of an allowance by virtue of the said subsection (1)(a) in respect of total disablement shall be the corresponding disablement pension rate ;
- (b) of an allowance by virtue of the said subsection (1)(a) in respect of disablement which is not total shall be two pounds ten shillings ;
- (c) of an allowance by virtue of the said subsection (1)(b) shall be the corresponding disablement pension rate less the amount of any weekly payments by way of workmen's compensation payable to the recipient in consequence of any of the diseases or injuries in consequence of which the allowance is payable.

(3) The weekly rate of an allowance such as is mentioned in subsection (2)(a) or (b) of this section shall be increased, in such circumstances and subject to such conditions as may be prescribed by the scheme (in accordance, for the purposes of paragraph (b) of this subsection, with any regulations in force under section 7(2) of the National Insurance Act 1966)—

1966 c. 6.

- (a) in any case, by an amount equal to the unemployability supplement which would be payable under section 13 of the Industrial Injuries Act if the person entitled to the allowance were entitled to a disablement pension ;
- (b) where the said person requires constant attendance as the result of the disablement, by an amount equal to any increases which would be payable under section 15 of the Industrial Injuries Act or section 6 of the said Act of 1966 if he were entitled to a disablement pension in respect of an assessment of one hundred per cent. ;
- (c) where the said person has a family which includes a child or children within the meaning of section 17 of the Industrial Injuries Act, by an amount equal to any increase which would be payable under the said section 17 in respect of that child or those children if he were entitled to injury benefit ;
- (d) where the said person is treated under the provisions of the scheme as residing with or contributing at a weekly rate of not less than the amount hereinafter

mentioned towards the maintenance of his wife, by an amount equal to any increase which would be payable under section 18 of the Industrial Injuries Act in respect of her if he were entitled to injury benefit.

(4) The benefit payable in pursuance of such a scheme in respect of the death of any person shall be payable to or for the benefit of such persons as may be prescribed by the scheme (being members of the deceased's family within the meaning of the Workmen's Compensation Act 1925 who at the time of the death were or are treated for the purposes of the scheme as having been wholly or in part dependent on the deceased's earnings); and subject to the provisions of this Act such benefit shall be a capital sum or sums of an amount or aggregate amount not exceeding three hundred pounds. 1925 c. 84.

8.—(1) Subject to subsection (2) of this section, subsections (2) to (6) and (8) of section 4 of this Act shall have effect for the purposes of section 5 of this Act as if in the said subsections (2) to (6) and (8)— Ancillary provisions to s. 5.

(a) any reference to a scheme were a reference to a scheme under the said section 5;

(b) any reference to section 2 of this Act were a reference to the said section 5;

(c) any reference to allowances (other than the reference in subsection (4)) included a reference to any other benefit under the said section 5.

(2) Nothing in this Act shall authorise the recovery of sums by deduction from benefit under the said section 5 in respect of the death of any person, or the abatement of such benefit.

(3) Without prejudice to the powers conferred by the said section 4 as applied by this section, a scheme under the said section 5 may in particular make provision—

(a) for the determination by a medical board of questions of such classes as may be prescribed by the scheme;

(b) for the determination by one of the Commissioners appointed under section 9 of the National Insurance Act 1966, or by a tribunal constituted under subsection (3) of that section, on a reference in accordance with the provisions of the scheme, of questions of any such classes as may be so prescribed. 1966 c. 6.

(4) Without prejudice to the provision made by subsections (1) and (3) of this section with respect to the determination of questions, a scheme under the said section 5 may, where it appears to the Minister expedient so as to avoid the introduction or working of the scheme being impeded, provide that, in any circumstances prescribed by the scheme, a person shown to be disabled by a disease shall be presumed for the purposes of the scheme to have been disabled by that disease for such

period previously, and the disablement to have been during that period or any part of it of such a nature and degree, as may be so prescribed.

1925 c. 84.

(5) A scheme under the said section 5 may direct that so much of section 26 of, and Schedule 2 to, the Workmen's Compensation Act 1925 as provides for the administration by the county court of workmen's compensation payable in the case of death, and so much of section 21(2) of that Act as provides for the amount of compensation payable to each dependant to be settled by the county court, shall apply, subject to such modifications as may be prescribed by the scheme, in relation to benefits payable under the scheme in respect of the death of any person; and for the purposes of any such scheme the provisions so applied and sections 22 and 27 of the said Act of 1925 shall have effect accordingly notwithstanding any repeal effected by the Industrial Injuries Act of 1946.

(6) In the application of subsection (5) of this section to Scotland, references therein to sections 21, 22, 26 and 27 of the Workmen's Compensation Act 1925 shall include references to section 49 of that Act in so far as it relates to those sections, and for references to the county court there shall be substituted references to the sheriff court.

Adjustment of benefit

Adjustment
of benefit in
certain cases.

9.—(1) A scheme under section 2 or section 5 of this Act may include provisions for adjusting the rate of, or extinguishing any right to, an allowance under the section in question or under the other of those sections in a case where the same person is, or would otherwise be, entitled separately in respect of two or more injuries or diseases to an allowance under the section in question or, as the case may be, to both such an allowance and an allowance under the other of those sections.

1965 c. 79.

(2) Where immediately before the commencement of this Act a person was receiving payments by virtue of section 3(2) of the Workmen's Compensation and Benefit (Amendment) Act 1965 of a greater amount or aggregate amount than, but for the provisions of this subsection, he would be entitled to receive after the commencement of this Act by way of allowances under section 2 or 5 of this Act, he shall continue to be entitled to that greater amount or aggregate amount for any period after the commencement of this Act for which he would have so continued if this Act had not been passed.

Miscellaneous and general

Exemptions
from stamp
duty.

10. Stamp duty shall not be chargeable—

- (a) upon such documents used in connection with business under sections 2 to 4 of this Act as may be specified in a scheme made under the said section 2;

- (b) upon such documents used in connection with business under sections 5 to 8 of this Act as may be specified in a scheme under the said section 5.

11.—(1) If any person, for the purpose of obtaining any allowance or payment under section 2 or any benefit or payment under section 5 of this Act, whether for himself or some other person—

(a) knowingly makes a false statement or false representation; or

(b) produces or furnishes, or causes or knowingly allows to be produced or furnished, any document or information which he knows to be false in a material particular,

he shall be liable on summary conviction to a fine not exceeding one hundred pounds, or to imprisonment for a term not exceeding three months, or to both.

(2) A scheme under section 2 or 5 of this Act may provide for the recovery on summary conviction of monetary penalties in respect of an offence under this Act, being a contravention of or failure to comply with a provision of such a scheme, so, however, that such penalties shall not exceed ten pounds for each offence or, where the offence consists in continuing any such contravention or failure after conviction thereof, ten pounds together with a further ten pounds for each day on which it is so continued.

(3) Nothing in this section shall be construed as preventing the Minister from recovering by means of civil proceedings any sums due to the Industrial Injuries Fund.

(4) Notwithstanding any provision in any Act prescribing the period within which summary proceedings may be commenced, proceedings for an offence under this Act may be commenced at any time within twelve months after the commission of the offence.

(5) In any proceedings for an offence under this Act, the wife or husband of the accused shall be competent to give evidence, whether for or against the accused:

Provided that the wife or husband shall not be compellable either to give evidence or, in giving evidence, to disclose any communication made to her or him by the accused during the marriage.

12.—(1) The Minister may, with the consent of the Treasury, make reciprocal arrangements for payments under section 2 or 5 of this Act to be made in Northern Ireland out of the same fund as payments under any corresponding legislation of

Reciprocal
arrangements
with
Northern
Ireland.

Northern Ireland, and for payments under any such corresponding legislation to be made out of the Industrial Injuries Fund, and for making any necessary financial adjustments between the two funds resulting from the arrangements.

(2) In relation to payments out of the Industrial Injuries Fund by virtue of any such arrangements, section 11(1) of this Act and, to such extent and subject to such modifications as may be provided by a scheme under section 2 or 5 of this Act, any provisions of such a scheme shall apply as if they were payments under the said section 2 or 5.

1920 c. 67.

(3) In connection with any such legislation of Northern Ireland, any limitation of the powers of the Parliament of Northern Ireland imposed by the Government of Ireland Act 1920 shall not apply in so far as it would preclude that Parliament from enacting a provision corresponding to any of the foregoing provisions of this section.

Application of
enactments.

13.—(1) Subject to section 8(2) of this Act, the enactments specified in subsection (2) of this section shall have effect—

(a) as if any reference therein to, or falling to be construed as a reference to, the Industrial Injuries Act (other than a reference to a particular provision of that Act) or, in the case of the enactment specified in subsection (2)(a)(ii) of this section, to the Insurance Act included a reference to this Act;

(b) as if any reference therein to benefit under the Industrial Injuries Act included a reference to an allowance under section 2 or any benefit under section 5 of this Act;

and any review of, or report on, the operation of the Industrial Injuries Act made by the Government Actuary or Deputy Government Actuary under section 60 of that Act shall extend also to the operation of this Act (other than section 1 thereof) during the period covered by the review or report.

(2) The enactments referred to in the foregoing subsection are—

(a) in the Insurance Act—

(i) section 81(6) (which relates to the recovery of sums by deduction from benefit);

(ii) section 91(2) to (5) (other than subsection (5)(b)) (which relate to the proof of age, marriage and death);

(iii) section 96, as applied for the purposes of the Industrial Injuries Act by section 68(1) of that Act (which relates to civil proceedings to recover sums due to the Industrial Injuries Fund).

(b) in the Industrial Injuries Act—

(i) section 54(8) (which relates to the recovery of sums by deduction from benefit) ;

(ii) section 61 (which relates to the expenses of the Minister and other government departments) ;

(iii) section 85 (which contains provisions as to powers to make Orders in Council and regulations) ;

(c) in the Family Allowances Act 1965, section 8(3) (which 1965 c. 53. relates to the recovery of sums by deduction from benefit).

14.—(1) In this Act, except where the context otherwise Interpretation. requires, the following expressions have the following meanings respectively, that is to say—

“corresponding disablement pension rate” means the weekly rate for the time being of a pension payable under section 12(5) of the Industrial Injuries Act in respect of an assessment of one hundred per cent. ;

“the Industrial Injuries Act” means the National Insurance 1965 c. 52. (Industrial Injuries) Act 1965, and in section 6(1)(a) of this Act includes the Industrial Injuries Act of 1946 ;

“the Industrial Injuries Act of 1946” means the National 1946 c. 62. Insurance (Industrial Injuries) Act 1946 ;

“the Insurance Act” means the National Insurance Act 1965 c. 51. 1965 ;

“the Minister” means the Minister of Social Security ;

“pneumoconiosis” means fibrosis of the lungs due to silica dust, asbestos dust or other dust, and includes the condition of the lungs known as dust-reticulation ; and, without prejudice to subsection (2) of this section, in the case of a person who suffers from pneumoconiosis accompanied by tuberculosis, the effects of the tuberculosis may be treated as if they were effects of the pneumoconiosis ;

“prescribed”, in relation to an occupation and a disease to which section 5 of this Act applies, means any occupation in the case of which, by virtue of regulations under section 58 of the Industrial Injuries Act, that disease is prescribed in relation to insured persons employed in insurable employment ;

“workmen’s compensation” means compensation under any of the Workmen’s Compensation Acts or under any contracting-out scheme duly certified under any of those Acts ;

1925 c. 84.
1906 c. 58.

“the Workmen’s Compensation Acts” means the Workmen’s Compensation Acts 1925 to 1945, or the enactments repealed by the Workmen’s Compensation Act 1925, or the enactments repealed by the Workmen’s Compensation Act 1906 ;

and unless the context otherwise requires other expressions defined in the Industrial Injuries Act have the same meanings as in that Act.

(2) In the case of a person the extent of whose disablement resulting from pneumoconiosis, or from pneumoconiosis accompanied by tuberculosis, would, if his physical condition were otherwise normal, be determined in accordance with a scheme under section 2 or section 5 of this Act to be of a gravity comparable to an assessment under the Industrial Injuries Act at not less than fifty per cent., and the pneumoconiosis is accompanied or, as the case may be, further accompanied by emphysema or chronic bronchitis, the effects of the emphysema or chronic bronchitis may be treated for the purposes of an allowance under the said section 2 or 5 as if they were effects of the pneumoconiosis.

(3) The reference in subsection (1) of this section to regulations under section 58 of the Industrial Injuries Act shall be construed, in relation to any scheme under section 5 of this Act, as a reference to the regulations in force at the commencement of the scheme or at such time thereafter as may be prescribed by the scheme.

(4) For the purposes of this Act—

(a) a period shall be treated as considerable if it lasts or can be expected to last for not less than thirteen weeks ;

(b) a person may be treated as being, as the result of an injury or disease or as the joint result of two or more injuries or diseases, totally incapable of work and likely to remain so incapable for a considerable period notwithstanding that the disability resulting from the injury or disease or, as the case may be, from the injuries or diseases taken together is not such as to prevent him from being capable of work, if it is likely to prevent his earnings (including any remuneration or profit derived from a gainful occupation) exceeding one hundred and four pounds a year.

(5) Except where the context otherwise requires, any reference in this Act to any enactment shall be construed as a reference to that enactment as amended, extended or applied by or under any other enactment.

15.—(1) The enactments specified in the Schedule to this Act are hereby repealed to the extent respectively specified in the third column of that Schedule. Repeals, savings, etc.

(2) Any instrument in force immediately before the commencement of this Act and made under any enactment repealed and re-enacted by this Act, and any award or claim made or other thing whatsoever done under or by virtue of any such enactment, shall be deemed to have been made or done under or by virtue of the corresponding provision of this Act; and anything begun under any such enactment may be continued under this Act as if begun under this Act.

(3) So much of any enactment, instrument or other document whatsoever, whether passed or made before or after the commencement of this Act, as refers expressly or by implication to any enactment repealed and re-enacted by this Act or to the Act containing that enactment shall, if and so far as the context permits, be construed as referring to the corresponding provision of this Act or, as the case may be, to this Act.

(4) In section 85(2) of the Insurance Act, for paragraphs (d) to (g) there shall be substituted the following paragraph—

“(d) the Industrial Injuries and Diseases (Old Cases) Act 1967.”

(5) In section 7(2) of the National Insurance Act 1966— 1966 c. 6.

(a) in paragraph (b), for the reference to section 3(2)(b) of the Pneumoconiosis and Byssinosis Benefit Act 1951 there shall be substituted a reference to section 7(3)(b) of this Act; 1951 c. 4. (15 & 16 Geo. 6 & 1 Eliz. 2).

(b) in paragraph (iii), for the reference to the Industrial Diseases (Benefit) Acts 1951 and 1954 there shall be substituted a reference to section 5 of this Act;

and in section 16(1) of the Ministry of Social Security Act 1966 for paragraphs (d) and (e) there shall be substituted the following paragraph— 1966 c. 20.

“(d) allowances under section 2, or allowances or other benefit under section 5, of the Industrial Injuries and Diseases (Old Cases) Act 1967.”

(6) The House of Commons Disqualification Act 1957 shall have effect subject to the following amendment, being an amendment of that Act in its application to the House of Commons of the Parliament of the United Kingdom, that is to say, in Part III of Schedule 1, in the entry beginning “Chairman or Deputy Chairman of an Administrative Board” for the words from “made” onwards there shall be substituted the words “made, or having effect as if made, under section 2 or 5 of the Industrial Injuries and Diseases (Old Cases) Act 1967”.

(7) Notwithstanding the repeals effected by this Act in section 89 of the Industrial Injuries Act of 1946—

(a) the Minister shall continue to have power by regulations to make such transitional or consequential provisions as appear to him to be necessary or expedient having regard to the repeal by that section of any enactment in relation to diseases and to injuries not caused by accident, including provision for modifying or winding up any scheme made under any enactment repealed by that section ;

(b) Her Majesty shall continue to have power by Order in Council to make or authorise the making of such provision as appears to Her to be necessary or expedient, having regard to the provisions of the said section 89, for—

1925 c. 84. (i) modifying or winding up any contracting-out scheme certified under section 31 of the Workmen's Compensation Act 1925 ;

1934 c. 23. (ii) winding up any compensation trust established under the Workmen's Compensation (Coal Mines) Act 1934 ;

(c) provision in relation to deposits made under section 4 of the said Act of 1934 by mutual indemnity associations for any matters consequential on the passing of the said section 89 may, notwithstanding the repeal of that Act by the said section 89, continue to be made by rules made under the said section 4.

(8) For the avoidance of doubt, the provision which may be made by virtue of subsection (7)(a) of this section for modifying such a scheme as is therein mentioned shall include provision for the union of any fund established under any such scheme with any other fund established for comparable purposes.

1951 c. 22. (9) A claim in respect of a period before 1st March 1966 for an allowance under a scheme made under the Workmen's Compensation (Supplementation) Act 1951 or the Pneumoconiosis and Byssinosis Benefit Act 1951 or for an allowance under the Workmen's Compensation and Benefit (Supplementation) Act 1956 may be made, and, when made, shall be determined, and any award thereon in respect of such a period shall be made, as if the Workmen's Compensation and Benefit (Amendment) Act 1965 and this Act had not been passed ; and if on any such claim an allowance is awarded, section 9(2) of this Act shall apply as if the claimant had been receiving payment of that allowance immediately before the commencement of this Act, whether or not he was in fact doing so.

1951 c. 4 (15 & 16 Geo. 6 & 1 Eliz. 2).
1956 c. 51.
1965 c. 79.

(10) A scheme under section 2 or section 5 of this Act may include provision for the payment or award in respect of any period beginning on or after the passing of the National Insurance 1967 c. 25.
(Industrial Injuries) (Amendment) Act 1967 of an allowance under the section in question at a rate increased by virtue of that Act without any further award or, as the case may be, any further claim, in a case where sufficient evidence of the satisfaction of the conditions for that increased rate has already been supplied ; and where a statutory instrument containing such a scheme is made before the expiration of the period of six months beginning with the date of the passing of that Act and contains a statement that the scheme is made in consequence of that Act, then section 4(8)(a) of this Act shall not apply to the scheme but the scheme shall instead be subject to annulment in pursuance of a resolution of either House of Parliament.

(11) Nothing in subsections (2) to (6) of this section shall be taken as affecting the general application of section 38 of the Interpretation Act 1889 with regard to the effect of repeals. 1889 c. 63.

16.—(1) This Act may be cited as the Industrial Injuries and Diseases (Old Cases) Act 1967. Short title,
extent and
commence-

(2) This Act (except sections 12(3) and 15 thereof) shall not extend to Northern Ireland. ment.

(3) This Act shall come into force on such day as the Minister may by order made by statutory instrument appoint.

Section 15.

SCHEDULE

ENACTMENTS REPEALED

Chapter	Short Title	Extent of Repeal
9 & 10 Geo. 6. c. 62.	The National Insurance (Industrial Injuries) Act 1946.	Section 89, except subsection (1)(c). Schedule 9.
14 & 15 Geo. 6. c. 22.	The Workmen's Compensation (Supplementation) Act 1951.	The whole Act.
15 & 16 Geo. 6. c. 4.	The Pneumoconiosis and Byssinosis Benefit Act 1951.	The whole Act.
2 & 3 Eliz. 2. c. 16.	The Industrial Diseases (Benefit) Act 1954.	The whole Act.
5 & 6 Eliz. 2. c. 26.	The National Insurance Act 1957.	Paragraph 3 of the Schedule.
6 & 7 Eliz. 2. c. 1.	The National Insurance (No. 2) Act 1957.	Section 4(2).
10 & 11 Eliz. 2. c. 6.	The Family Allowances and National Insurance Act 1961.	Sections 3(4) and 14(5).
1964 c. 96 ...	The National Insurance &c. Act 1964.	Section 3(3).
1965 c. 52 ...	The National Insurance (Industrial Injuries) Act 1965.	In section 61(1), the words "or section 89 of the Act of 1946".
1965 c. 79 ...	The Workmen's Compensation and Benefit (Amendment) Act 1965.	The whole Act.
1966 c. 6 ...	The National Insurance Act 1966.	Section 6(4)(d).
1967 c. 25. ...	The National Insurance (Industrial Injuries) (Amendment) Act 1967.	In section 1(1), the words "the following enactments, namely", paragraphs (b) and (c), and the word "each". Section 1(2) from "or, as" onwards. Section 1(3). In section 1(4), the words "or a scheme under the Supplementation Act or the Benefit Act", the words "or, as the case may be, that the scheme is" and the words from "or, as the case may be, section" onwards. Section 2 from "or under" onwards. Section 3(3)(b). In section 3(4) the words from "section 5(3)" to "Benefit Act".